

COLLECTIVE BARGAINING AGREEMENT

By and Between

City of Greenfield

and the



**UNITED PUBLIC SERVICE EMPLOYEES UNION
Local 424 - Unit MADIV 117
Greenfield Central Maintenance Employees**

July 1, 2023 through June 30, 2026

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ARTICLE 1
AGREEMENT

Agreement entered into between the CITY OF GREENFIELD in the County of Franklin, Massachusetts (hereinafter referred to as the "City") and the UNITED PUBLIC SERVICE EMPLOYEES UNION (hereinafter referred to as the "Union").

ARTICLE 2
PURPOSE OF AGREEMENT

- A. This Agreement is entered into by the parties hereto in order to provide for orderly collective bargaining relations between the City, the employees in the bargaining unit and the Union.
- B. It is the desire of both parties to cooperate in maintaining a harmonious relationship between the City and its employees, and to provide an amicable method of settling any difference or grievance relating to wages, hours and other conditions of employment which may arise from time to time and to support the City goal of providing the highest quality of service and performance that is expected to be provided to taxpayers and citizens.
- C. The Union recognizes the responsibilities imposed upon it as the exclusive bargaining agent of the unit.

ARTICLE 3
UNION RECOGNITION

The City recognizes the Union as the exclusive representative of all full and regular part-time employees of the Central Maintenance division under the Department of Public Works including Master Electrician, Journeyman Electrician, HVAC-R Technician, and Master Plumber and excluding all managerial and confidential employees, and all other employees of the City of Greenfield. Part-time is defined as regularly working twenty (20) hours or more per week. Part-time employees who work less than twenty (20) hours per week, summer help and temporary employees are excluded from the bargaining unit and are ineligible for contractual benefits.

ARTICLE 4
NO DISCRIMINATION

- A. The City agrees that no employee shall in any manner be discriminated against, coerced or restrained on account of membership in the Union or by reason of any Union activity.

- B. The City recognizes its obligations under the Massachusetts Fair Employment Practices Act and other relevant laws which provide employees with rights to be free from unlawful discrimination based on factors such as age, race and gender. Any claim that the City or a City management employee or official has violated these rights shall be pursued exclusively through resort to the procedures established under State and Federal laws for the vindication of these rights.

ARTICLE 5

CHECKOFF OF DUES

- A. Effective June 27, 2018, employees have the Constitutional right to choose to be or not be members of the Union or to pay or not pay an Agency Service Fee to the Union. They cannot be retaliated against for exercising these rights. The amount of the Union Dues and Agency Service Fee shall be certified in writing to the City and City Treasurer on or before January 1st of each year.
- B. The Union agrees to and does hereby indemnify, defend and save the City harmless from and against any and all claims, demands, liabilities, lawsuits or any other form of action arising from or related to any action taken by the City in reliance upon information furnished to the City by the Union for the purpose of complying with any of the provisions of this Article.
- C. Agency Service Fee: The Union agrees to indemnify and save the City harmless against all claims, suits or other forms of liability arising out of the deductions of any Agency Service Fee from an employee's pay or out of application of this Article. The Union agrees to assume full responsibility for the disposition of the monies so deducted once they have been turned over to the Treasurer of the Union, who shall provide such information to the City Treasurer as may be required by said City Treasurer under General Laws, Chapter 180, Section 17G.

ARTICLE 6

NO STRIKE CLAUSE

The Union agrees that, during the life of this Agreement, there will be no strike, picketing or stoppage of work, and the City agrees that there will be no lockout.

ARTICLE 7

CITY RIGHTS

- A. The City, the Union and the employees agree that the right and responsibility to operate and manage the business and the affairs of the City, to select and direct the working forces and to control, direct, discontinue and change the use of its properties and facilities are vested exclusively in the City. These rights and responsibilities include by way of

illustration the right to determine, control and change work and experimental operations; the right to select, test, train and to determine the ability and the qualifications of the employees; the right to determine, control and change emergency, experimental, operating, production, shift, training and working assignments and schedules; the right to determine, control, plan and change all matters pertaining to purchase, sale or disposition of equipment, and the organization of the management staff; the right to establish, distribute, modify and enforce reasonable rules of employee conduct, manuals of operating procedures and rules and regulations governing matters pertaining to safety and health within the operations of the City; the right to determine, control and change the quality and nature of its services; the right to employ, lay off, discharge, retire, assign, discipline, transfer, interview and promote its employees, including casual, seasonal, temporary employees and contract labor except as specifically limited by this Agreement; the right to obtain from any source and to contract and subcontract for materials, services, supplies and equipment and reduce, or eliminate functions; the right to investigate all matters relating to City operations, citizen complaints and employee conduct; the right to control, determine, direct, establish, change and discontinue City functions and services or the location or the operation of its office, the DPW garage or other facilities; the right to determine, establish and change any form of employee benefits not otherwise provided for in this Agreement; the right to maintain discipline and order and to maintain or improve efficiency within its operations and all other rights pertaining to the operation and the management of the business and the affairs of the City and the establishment and change of conditions of employment not specifically given in this agreement to the Union or to the employees.

The failure by the City to exercise any of the rights as provided in this Article shall not be construed as a waiver of these rights nor of the right of the City to control, operate and manage its business. The Union and the employees agree that, except as otherwise specifically provided in this Agreement, nothing contained in this Agreement shall be construed or deemed to constitute a waiver of or any restriction upon the inherent right to the management of the City to operate and conduct its business, facilities and services with maximum efficiency or of the common law right of the City to control, direct, manage, plan and make changes in the business or the affairs of the City, and to unilaterally exercise rights and authority as provided and illustrated in this Section; provided, however, that none of these rights shall be exercised by the City contrary to any specific provisions of this Agreement.

B. Causes for Dismissal. Employment will be terminated for an employee who has committed any of the following violations:

1. Insubordination or refusal to carry out orders from the facilities manager, equivalent or those of higher rank.
2. Use of or working under the influence of alcohol or illegal drugs while on the premises while employed during working hours or while operating City-owned vehicles or equipment;

3. Willful destruction, theft or damage of City property;
4. Excessive unexcused absence and lateness;
5. Fighting or threatening violence in the workplace;
6. Unauthorized use of sick leave or falsification of sick leave requests;
7. Failure to notify the City that a required valid driver's license has been temporarily or permanently revoked or suspended or whose driver's license is intentionally not renewed;
8. Acts of sexual harassment; or
9. Falsification of timekeeping records or other employee or departmental records.
10. Refer to Department of Public Works Personnel Conduct Requirements.

Grievance procedures as defined in Article 24 and Substance Abuse Procedures as defined in Article 26 will be followed.

- C. No amendment, alteration or variation of the terms or provisions of this Agreement shall bind the Parties hereto unless made and executed in writing by said Parties.
- D. The failure of the City or the Union to insist, in any one or more situations, upon performance of any of the terms or provisions of this Agreement, shall not be considered a waiver or relinquishment of the right of the City or of the Union to future performance of any such term or provision, and the obligations of the Union and the City to such future performance shall continue.
- E. The exercise by the City of any of the foregoing rights shall not be used to discriminate against any employee by reasons of membership or non-membership in the Union.

ARTICLE 8

SENIORITY

Seniority shall be defined as an employee's continuous length of service from the most recent date of hire. Employees shall serve a six (6) month probationary period; however, after completing ninety (90) calendar days of work seniority rights for benefit purposes shall date back to the time of employment. The City has the right to discharge a probationary employee without reference to the Union and such discharge is not subject to any provisions of this agreement.

ARTICLE 9

WAGES

- A. July 1, 2023, base rates will be increased by two percent (2%) COLA. Step on July 1st, six (6) months earlier in FY24, due to the change in the effective date for stepping. On July 1, 2024, base wages will be increased by three percent (3%) COLA, and adding a new step K with a three percent (3%) spread between step J and step K. On July 1, 2025, base rates will be increased by three percent (3%) COLA. In the case of any agreement as to retroactive pay, said retro shall be limited to employees still actively employed in the bargaining unit as of the date this collective bargaining agreement is signed by all of the parties and will not be processed for payment until the collective bargaining agreement is ratified by the Union and approved by the city to include appropriation by the city council. Wages are as outlined in the Central Maintenance (CM) wage schedule attached hereto and as amended in any fiscal year.

A new employee will step at the end of the probationary period.

Step increases occur on July 1.

Time worked for step increases shall include only holidays and vacations. To be eligible for a step increase an employee must have worked not less than one hundred thirty (130) days in the aggregate in the year prior to July 1st at their present classification step.

The following will become effective July 1, 2023:

Stepping will occur on July 1st of each year for eligible employees instead of January each year, therefore January steps will no longer occur.

- B. Longevity Pay: Each bargaining unit member shall be paid longevity pay based on one-dollar (\$1.00) per week times the years of service after ten (10) years of service. Effective July 1, 2023, each bargaining unit member, in addition, shall receive two dollars (\$2.00) per week for each year of service beginning on the eleventh (11) year of service. (e.g. worker A upon reaching ten (10) years of service shall receive ten dollars (\$10) per week. At year eleven (11) they receive an additional two dollars (\$2.00) per week, a total of twelve dollars (\$12.00) per week. At year twelve (12), they receive an additional two dollars (\$2.00) per week, a total of fourteen dollars (\$14.00) per week, and so on). Effective July 1, 2023, eligible employees will receive longevity increases on the first of the month in which their anniversary date lands instead of on their anniversary date. Longevity Pay shall not be computed into overtime.
- C. Part-time employees are those who work fewer than forty (40) hours per week on a regular schedule. Part-time employees must, however, work an average of twenty (20) hours a week in order to be eligible for all City benefits, as well as statutory benefits for which they meet statutory requirements. Accrual rates or defined benefits shall be pro rata. Pro rata is defined as the equivalent amount as compared to a full-time position. Temporary and seasonal employees are not benefit eligible.

ARTICLE 10
HOURS AND OVERTIME

- A. The payroll period begins 12:01 a.m. on Sunday and ends at midnight on the second Saturday. The pay day shall begin at 12:01 a.m. and end at midnight that same date. All employees covered by this agreement shall be paid biweekly with overtime calculated on a weekly basis.
- B. The normal work week is eight (8) hours per day, (5) days or forty (40) hours per week. Time and a half will be paid for all work beyond eight (8) hours in a twenty-four (24) hour period; for all work beyond a continuous shift of eight (8) hours; for all work beyond forty (40) hours per week; for all holidays worked (in addition to holiday pay); and if called in from their vacation or personal day. Personal time, compensatory time, vacation time, holidays, or approved sick time will count as time worked when computing overtime. Three (3) hours work or pay at the applicable overtime rate will be paid to employees called back to work after having left the workplace. Overtime or straight-time rates may not be pyramided and no employee shall be paid both daily and weekly overtime premium for the same hours worked.
- C. The normal work day will be from 7:00 a.m. to 3:00 p.m. The normal mid-day lunch period will be a paid period from Noon until 12:30 p.m. Lunch will be carried by the employee and eaten at the work site. There will be a fifteen (15) minute mid-morning break at a reasonable time as determined by a Supervisor. A twenty (20) minute paid meal break will be allowed after each four (4) hours of overtime.
- D. In lieu of overtime pay, employees may request compensatory time at the rate of one and one half (1 ½) hours for each overtime hour worked. Compensatory time off may be accumulated to a maximum of forty (40) hours. A maximum up to forty (40) hours may be carried over from fiscal year to fiscal year. Requests for compensatory time off will be administered the same as vacation requests.
- E. Temporary and part-time help will only be paid overtime beyond eight (8) hours daily and forty (40) hours weekly.
- F. In cases on rare occasions where an emergency arises or projects necessitate and it is pre-approved by DPW Director or designee with as much notice as possible, employee(s) may have flexible work schedules always to equal 8 hours. The employee(s) shall return to normal hours as soon as possible.
- G. The City agrees to allow comp. time for attending weekend classes under the following conditions:
- The class is mandatory for their licensing requirements.
 - The class is only available on the weekends (If the class is available during the workweek then it shall be taken during the workweek).
 - Prior approval from the DPW Director or designee is required.
 - Comp. time will be calculated as straight-time (1 for 1)

- Classes taken during the week will not be eligible for comp. time even if the class runs beyond the employee's regular work hours (i.e. ends at 5pm instead of 3pm).

ARTICLE 11 **HOLIDAYS**

A. HOLIDAYS

New Year's Day	Columbus Day
Martin Luther King, Jr. Day	Veterans Day
President's Day	Thanksgiving Day
Patriot's Day	Day following Thanksgiving
Memorial Day	Christmas Day
Independence Day	Juneteenth
Labor Day	

The above holidays will be considered paid holidays. All employees, except part-time and temporary help, will receive eight (8) hours pay for such holidays regardless of the day on which they fall. If a holiday as set forth above falls on a Saturday, the preceding Friday shall be a non-work day. If a holiday as set forth above falls on a Sunday, the following Monday shall be a non-work day.

The following will be considered paid one-half holidays: Christmas Eve (12/24) and New Year's Eve (12/31); When Christmas Eve and New Year's Eve falls on a Saturday or Sunday, the one-half (1/2) day will be on the Friday before the holiday. A one-half (1/2) day holiday will be four (4) hours.

Employees may be required to work on the day after Thanksgiving; and, if so, they will receive a floating holiday instead.

To be eligible for holiday pay, an employee must have completed ninety (90) calendar days of work and must have worked not less than twenty (20) days in the aggregate in the year prior to the holiday and must have worked on the day preceding and the day following the holiday, unless a duly authorized leave of absence shall have been granted for either of said days. Part-time employees must, regularly work twenty (20) or more hours a week in order to be eligible for prorated holidays.

When a holiday occurs during an employee's vacation period, the employee will be paid holiday pay and will not be charged with a vacation day.

Effective July 1, 2021, Employee birthdays will be a paid holiday (birthday holiday must be used within the week the birthday lands, scheduled in collaboration with their direct supervisor if it is not on their actual birthday). To be eligible for birthday holiday pay,

an employee must have completed the initial probationary period. See Article 8 for probationary period details.

A four (4) hour paid release time for the bargaining unit during the summer on a mutually agreed date between the City, Central Maintenance and DPW.

ARTICLE 12

VACATIONS

- A. Vacation shall be at full pay and the employee's anniversary date of hire shall be the date from which all vacation leave is credited. Vacation leave shall be earned per month of completed service, to be credited on the first day of the following month for prior months completed service and shall be available for use at that time. Part-time workers will earn vacation leave on a prorated basis. Vacation leave shall be accumulative to a maximum of twelve (12) months. An employee who successfully completes their probationary period may use their accumulated vacation time.

Years of Service	Days/Years	Hours/Years	Hours/Month	Days/Month
< 2 years	10	80	6.67	.83
2 years but < 4	12	96	8	1.00
4 years but < 6 years	13	104	8.67	1.08
6 years but < 8 years	15	120	10	1.25
8 years but < 10	16	128	10.67	1.33
10 years but < 11	17	136	11.33	1.42
11 years but < 13	18	144	12	1.5
13 years but < 15	19	152	12.67	1.58
15 years but < 17	20	160	13.33	1.67
17 years but < 20	22	176	14.67	1.83
20 years but < 25	23	184	15.33	1.92
25 years or more	25	200	16.67	2.08

- B. Vacation requests shall be granted by the City at such time as will cause the least interference with the performance of such work of the City. The seniority of an employee, except for vacation change requests, shall determine the assignment of specific dates according to the following procedure:
1. The first two (2) weeks of vacation must be taken in a one (1) week or two (2) week period and requested in writing in advance before May 1st.
 2. Any vacation time and/or comp. time requested to be used during the morning time before noon on a given day, must be taken in a minimum of four (4) hour increments and must be requested in writing in advance. Employees requesting time off in the afternoon must either request the time in an increment of two and a half hours (2.5) and the City will allow employees requesting such time to leave

at noon (the beginning of the paid lunch period) or must request to take the final hour of the work day as personal or vacation leave.

- C. Whenever the employment of any person, subject to the provisions of this Section, is terminated during a year by layoff, resignation, retirement or death without them having been granted a vacation to which they are entitled under such Section, the employee, or in the case of their estate, shall be paid at the regular rate of compensation payable to them at the termination of their employment an amount in lieu of such vacation, provided that no monetary or other allowance has already been made therefore. The official head of the Department in which the person was last employed shall enter on the departmental payroll all amounts payable under this Section.
- D. Vacation leave, once approved, cannot be cancelled or changed except by mutual agreement.
- E. Illness suffered during an employee's approved scheduled vacation will be considered as vacation time rather than sick paid time. However, if hospitalization or confinement is required, paid sick time may be substituted for vacation time if the provisions of the sick leave of this Agreement are satisfied and the vacation time is rescheduled.
- F. Vacation accumulation shall be a maximum of twelve (12) months of accruals. Employees shall cease earning until such time as the balance is below the maximum capitation.

ARTICLE 13 **SICK LEAVE**

- A. All full-time employees will accrue sick leave at the rate of ten (10) hours per month of completed service, to be credited on the first day of the following month.
 - 1. An employee who successfully completes their probationary period may use their accumulated sick leave subject to the provisions of this Article.
 - 2. Sick leave may be accumulated to an unlimited amount subject to the provisions of this Article, and any other benefit provisions pertaining hereto.
- B. Leaves of absence for reasons of illness will be granted to any employee known to be ill, as supported by evidence satisfactory to the City. While the employee is on paid sick leave, their seniority will continue to accumulate to a minimum of one (1) year or the length of paid sick leave, whichever is greater. While it is understood that sick leave is only for the employee's illness or injury, up to eighty (80) hours of accrued sick time per year may be used by an employee for their ill child, parent/step-parent.
- C. Leaves of absence due to sickness shall be subject to the following rules:

1. Sick leave allowance shall be authorized only by the head of the respective Department of the City by which the employee is employed upon written application by the employee.
 2. Each employee must notify their division supervisor or designee promptly of any absence which is to be computed as sick leave.
 3. The employee should notify their supervisor before starting time on the first day of absence of the intended absence, the anticipated length of absence and any subsequent change in the anticipated length of absence.
 4. Absences resulting from substance abuse shall be excluded from sick leave allowance.
 5. The department head may require verifications satisfactory to the department head of any claim for sick leave if such verification is considered necessary. Upon returning to work after a sickness, the City agrees to accept a letter from a chiropractor or nurse practitioner, except in serious injury or illness cases. The department head may require a fitness-for-duty certification prior to an employee returning to work if sick leave was taken due to an injury (whether work-related or non-work-related).
 6. No sick leave shall be available when an employee is collecting Workers Compensation through another employer.
- D. Sick leave credited to an employee's record shall not be considered due an employee on separation of any nature from employment of the City, except as provided in Paragraph E.
- E. All full-time employees (or their estate) shall receive twenty percent (20%) of their unused accumulated sick leave at their base rate of pay in a lump sum payment based upon years of service in the following termination of employment classifications:
1. Death: No minimum years of employment;
 2. Disabled: No minimum years of employment;
 3. Laid off: Ten (10) years of employment;
 4. Retirement: Ten (10) years of employment;
 5. Resigns: No benefit.
 6. Terminated: No benefit.

The sick leave buy-back shall be capped at five thousand dollars (\$5,000).

ARTICLE 14 **MILITARY LEAVE**

- A. A military leave of absence without compensation shall be granted to any such

employee called to active duty with the Armed Forces of the Commonwealth or of the United States. -It is the employee's responsibility to notify their department head of the dates they are leaving for military service and to provide written proof from military or selective service officials. Leave granting and re-employment will be in accordance with the Uniformed Services Employment and Re-employment Rights Act (USERRA).

B. Seniority shall accumulate for employees who are out on Military Leave as required by USERRA. An employee's right to reemployment, and seniority rights will terminate if the employee is out on military leave for more than five years during the course of their entire employment with the City of Greenfield. Any exception to this five year rule will only be allowed if it is an exception recognized under USERRA.

ARTICLE 15

JURY DUTY LEAVE

If called for Jury Duty employees shall receive full salary and shall sign over any compensation they receive for such jury service to the city, exclusive of any travel or other allowance.

ARTICLE 16

UNION LEAVE

- A. Leaves of absence up to one (1) year will be granted for Union business without pay and without benefits accruing under the contract and by virtue of their employment, but with seniority accumulations.
- B. Reasonable time off for Union business will be allowed if the general welfare, safety and health of the general public are not jeopardized. Approval of the Facilities Manager or the Deputy Director is required.

ARTICLE 17

BEREAVEMENT LEAVE

- A. Five (5) days absence per calendar year shall be allowed, with full pay, in the event of death in the Employee's immediate family. Immediate family is defined to include spouse, children, parents, stepparents, siblings, stepsiblings, step children, a member of the immediate household residing with the employee or individual of whom the employee has acted as a parent or legal guardian.
- B. Three (3) days absence per year shall be allowed, with full pay, in the event of death of grandparents, grandchildren, step grandchildren, son or daughter- in-law, parents-in-law, sister-in-law, brother-in-law.
- C. One (1) day may be granted with full pay in the event of death of Aunts or Uncles to attend the funeral.

ARTICLE 18
PERSONAL LEAVE

Employees will be granted five (5) personal leave days per year with pay, with accrual credited on their anniversary date. Personal leave may be taken in no less than one (1) hour increments. Employees must have been employed for a period of three (3) months prior to accessing leave. Reasonable prior notice will be made unless the circumstances around the leave preclude such notice. Personal leave shall be at an employee's regular rate of pay and is not accumulative from year to year. Seniority shall continue to accumulate while an employee is on personal leave.

ARTICLE 19
OTHER LEAVES OF ABSENCE

Reasonable leaves for personal reasons may be granted for a maximum of one (1) year and shall be without compensation. No unpaid leave will be authorized if an employee has accumulated unused compensatory, vacation, personal or other paid time to their credit, except with the mutual agreement of the employee, the City and the Union. An employee with one year or more of employment with the City may request, in writing (to their department head and copied to the Mayor), a leave of absence without pay, not to exceed one year. While on such a leave, accruals will cease and the employee shall be eligible for Health Benefits under COBRA rights only. The City shall return the employee to the same or similar job held prior to the leave.

ARTICLE 20
FAMILY AND MEDICAL LEAVE

It is the policy of the City of Greenfield to comply with the provisions of the Federal Family Medical Leave Act (FMLA). Employees are entitled to Family and Medical Leave pursuant to the City's FMLA policy and applicable law. Additionally, this policy runs concurrently with and is integrated as provided for in the Massachusetts Parental Leave Act, MGL Chapter 149, Sec. 105D; and with the Massachusetts Small Necessities Act as provided for in MGL Chapter 149, Sec. 52D.

See the City of Greenfield Family and Medical Leave Policy for the Policy and Procedures.

ARTICLE 21
INSURANCE

Central Maintenance employees shall be entitled to participate in all insurance benefits (medical, dental, life) as established or as may hereafter be established by the City of Greenfield for employees.

PAYROLL DEDUCTION and VOLUNTARY PROGRAMS

Central Maintenance employees shall be entitled to participate in all payroll deduction and other voluntary programs as established or as hereafter may be established by the City of Greenfield for employees.

ARTICLE 22 **PENSION PLAN**

Central Maintenance employees, if eligible, shall be entitled to participate in the City's retirement system.

ARTICLE 23 **SAFETY**

- A. The Union and the City will cooperate to provide once a year a mandatory Standard First Aid course of eight (8) hours to all new employees and an optional Advanced First Aid course of sixteen (16) hours to all employees holding a CM-1 labor grade or higher position. The mandatory Standard First Aid course shall be on a part-time basis.
- B. The City will take proper steps, where necessary, to protect the employees and the public.
- C. The City will maintain equipment in safe operating conditions and employees shall not be required to operate equipment which would endanger their safety.
 - 1. The City will provide forms on which employees will be expected to report immediately to their assigned supervisor any defective equipment in order that the City shall take proper corrective steps.
 - 2. The assigned supervisor shall review the work slip to determine whether to continue or not to operate the vehicle.
 - 3. If continued operation of the vehicle violates either the requirements of the State Registry of Motor Vehicles or the assigned supervisor decides it is mechanically unfit to be operated, then the vehicle shall not be used until the necessary repairs have been made.
- D. Employees must wear their identification cards so they are clearly visible when entering any private or commercial establishment to perform work.
- E. Central Maintenance Technicians will be considered non-essential personnel under the inclement weather policy however if the weather creates an emergency that falls within the job duties/responsibilities of a technician, they will be considered essential and required to come in and address the emergency (i.e. frozen pipes, electrical damage, etc.)

ARTICLE 24
GRIEVANCE PROCEDURE

- A. A grievance is defined as a complaint by any union member(s) or the union that there has been a violation, misinterpretation or misapplication of the terms of this agreement. This procedure is applicable to employees regardless of union membership status.
- B. The purpose of this procedure is to secure, at the lowest level, equitable solutions to problems which may arise under this Agreement. Any employee may state their grievance informally with their supervisor, provided a representative of the Union is present when the grievance is settled. If the matter is unresolved informally, an earnest effort shall be made to settle it by the following formal procedure.

Step 1: Any complaint shall be presented orally or written by the aggrieved employee and/or their Union Representative on behalf of the aggrieved employee to the Division Supervisor within five (5) work days of the occurrence of the grievance. If they cannot reach a satisfactory settlement within one (1) work day, then the complaint shall be reduced to writing, signed and dated by the aggrieved employee and their Union Representative Division Steward, and referred to Step 2 within one (1) work day.

Step 2: A meeting of the Union Representative and Field Superintendent shall be held within two (2) working days. The Field Superintendent shall submit a written answer to the Union Representative within five (5) work days after the meeting. If the answer is unsatisfactory, the complaint shall be referred to Step 3 by the Union Representative within two (2) work days. General grievances may be presented by the Union Representative directly to the Field Superintendent at this Step.

Step 3: A meeting between the Union representative, the aggrieved employee, if the employee so desires, and the Director or designee shall be held within three (3) work days. The Director or designee shall submit a written answer to the Union Business Agent within five (5) work days after the meeting. If the answer is unsatisfactory, the complaint shall be referred to Step 4 within three (3) work days.

Step 4: A meeting of the Union Business Agent, the aggrieved employee, if they so desire, the Mayor or designee and the Director or designee shall be held within five (5) work days. The Mayor or designee shall submit a written answer to the Business Agent within five (5) work days.

Step 5: If the final answer at Step 4 is not satisfactory, the matter may be referred to arbitration by a written request to the Massachusetts Board of Conciliation and Arbitration for the appointment of an arbitrator in accordance with its procedures. Such request must be filed within thirty (30) days after the final Step 4 answer is delivered to an agent of the Union. A copy of the request must

simultaneously be filed at the Mayor's office. In the event the City and the Union do not agree to an arbitrator within ten (10) days of such request, the Massachusetts Board of Conciliation and Arbitration ("MBCA") will be requested to appoint an arbitrator. The arbitrator may not add to, amend or delete any provision of this Agreement.

Step 6: Either party may appeal the decision of the arbitrator or the decision of the MBCA to the Courts as provided by law.

- C. The services and expenses of the arbitrator shall be shared equally between the City and the Union.
- D. When any grievance meeting is mutually scheduled during regular work hours, those employees essential for participation in Steps 1, 2 and 3 will be released without loss of pay, but only for as long as the meeting shall be held.
- E. No record pertaining to a disciplinary action shall be used by the City in any grievance or arbitration procedure if during the below-specified time period after the discipline was imposed the employee received no further discipline for any reason:

Suspension: one (1) year
Warning: six (6) months

There shall be an exception to this provision in the case of discipline for absenteeism, where a longer period of time (not to exceed three (3) years in any case) is relevant to determining whether absenteeism is excessive.

ARTICLE 25

CLOTHING ALLOWANCE/FEEs

- A. The City will provide an outfitting allowance of six hundred dollars (\$600) if not providing uniforms which will be paid annually in one of two methods; 1. Full reimbursement, requested by employee through payroll (subject to taxes) or 2. Reimbursement through receipts (Receipt method must be a one-time submission for the full clothing amount).
- B. The City agrees that it will repair or replace with serviceable substitutes any employee's eyeglasses, false teeth, hearing aids, clothing or personal articles damaged as a result of a work-related accident without negligence on the part of the employee.
- C. The City agrees to pay the license fees charged by the State for the acquisition and maintenance of job description required licenses.
- D. Reimbursement for travel that is required to maintain certification status directly related to any employee's position will be paid at the prevailing rate as set by the City. Prior

approval from the DPW Director or designee is required. It will be determined whether a City vehicle is available for the employee's use as their first option.

ARTICLE 26
SUBSTANCE ABUSE PROCEDURE
For non-DOT/CDL Employees

The purpose of this policy is to establish that the City and the Union agree that the workplace must be a drug-free environment to protect the health and safety of City employees and the general public, and to maintain efficiency, productivity and economy of operations.

See the City's Substance Abuse Policy

ARTICLE 27
SOCIAL MEDIA POLICY

PURPOSE

This document defines the social media policy for the City of Greenfield, MA, referred to herein as "the City". This policy is intended to provide guidelines to ensure that social media tools are used properly and to address potential risks. The City recognizes that the secure use of social media can enhance communication, collaboration, and information exchange; streamline processes; and foster productivity. To address the fast-changing landscape of the Internet and the way residents communicate and obtain information online, City departments may consider using social media tools to reach a broader audience, and further the goals and missions of departments, where appropriate.

See the City of Greenfield Social Media Policy

ARTICLE 28
WORKERS' COMPENSATION

WAGES:

- An employee who is hurt on the job will be compensated for the balance of the day in which the injury occurred.
- Upon written application, employees receiving workers compensation may receive the difference between that compensation and their gross average weekly wage as determined by the Department of Industrial Accidents to determine benefit wage payments, deductible from their holiday, vacation, personal or sick pay and to the extent that they have accruals available.

SICK LEAVE:

- The department head may require verifications satisfactory to the department head of any claim for sick leave if such verification is considered necessary. Upon returning to work after a sickness, the City agrees to accept a letter from a chiropractor or nurse practitioner, except in serious injury or illness cases. The department head may require a fitness-for-duty certification prior to an employee returning to work if sick leave was taken due to an injury (whether work-related or non-work-related).
- No sick leave shall be available when an employee is collecting Workers Compensation through another employer.

ARTICLE 29
DURATION

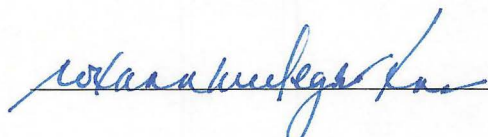
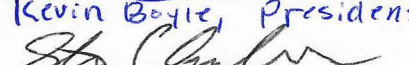
- A. This Agreement shall become effective July 1, 2023 and shall remain in full force and effect until and including June 30, 2026 and shall renew itself from year to year thereafter, unless written notice of desire to change or amend this Agreement is given at least sixty (60) days prior to the expiration date by either of the parties hereto. Written notice shall be mailed by certified mail, return receipt requested.
- B. Those provisions of this Agreement which are not in accordance with existing ordinance of the City of Greenfield will become effective only when such ordinances are changed or cancelled to permit such provisions to become effective.

IN WITNESS WHEREOF, the said CITY OF GREENFIELD, acting through its Personnel Board and the UNITED PUBLIC SERVICE EMPLOYEES UNION, through its officers duly authorized, hereby set their hands and seals to this instrument and to other instruments of like tenor on the day and year first above written.

IN WITNESS WHEREOF, the parties hereto have set their hands this 18th day of August, 2023.

CITY OF GREENFIELD:

UNITED PUBLIC SERVICE EMPLOYEES
UNION:

	<u>8.18.23</u>		<u>8/17/23</u>
	Date	Kevin Boyle, President	Date
			<u>8/17/23</u>
	Date	Steven Chaplier, Local President	Date
	Date		Date
	Date		Date

City of Greenfield Central Maintenance Wage Schedule

7/1/23 to 6/30/24

FY24

2% COLA

Grade	A	B	C	D	E	F	G	H	I	J
CM1	\$19.44	\$20.20	\$20.94	\$21.69	\$22.45	\$23.18	\$23.87	\$24.59	\$25.34	\$26.10
	\$1,555.20	\$1,616.00	\$1,675.20	\$1,735.20	\$1,796.00	\$1,854.40	\$1,909.60	\$1,967.20	\$2,027.20	\$2,088.00
	\$40,435.20	\$42,016.00	\$43,555.20	\$45,115.20	\$46,696.00	\$48,214.40	\$49,649.60	\$51,147.20	\$52,707.20	\$54,288.00
CM2	\$21.88	\$22.60	\$23.37	\$24.10	\$24.85	\$25.62	\$26.39	\$27.17	\$27.99	\$28.83
	\$1,750.40	\$1,808.00	\$1,869.60	\$1,928.00	\$1,988.00	\$2,049.60	\$2,111.20	\$2,173.60	\$2,239.20	\$2,306.40
	\$45,510.40	\$47,008.00	\$48,609.60	\$50,128.00	\$51,688.00	\$53,289.60	\$54,891.20	\$56,513.60	\$58,219.20	\$59,966.40
CM3	\$23.88	\$24.69	\$25.53	\$26.33	\$27.16	\$27.99	\$28.84	\$29.70	\$30.59	\$31.51
	\$1,910.40	\$1,975.20	\$2,042.40	\$2,106.40	\$2,172.80	\$2,239.20	\$2,307.20	\$2,376.00	\$2,447.20	\$2,520.80
	\$49,670.40	\$51,355.20	\$53,102.40	\$54,766.40	\$56,492.80	\$58,219.20	\$59,987.20	\$61,776.00	\$63,627.20	\$65,540.80
CM4	\$26.22	\$27.11	\$27.98	\$28.93	\$29.90	\$30.86	\$31.77	\$32.73	\$33.71	\$34.72
	\$2,097.60	\$2,168.80	\$2,238.40	\$2,314.40	\$2,392.00	\$2,468.80	\$2,541.60	\$2,618.40	\$2,696.80	\$2,777.60
	\$54,537.60	\$56,388.80	\$58,198.40	\$60,174.40	\$62,192.00	\$64,188.80	\$66,081.60	\$68,078.40	\$70,116.80	\$72,217.60
Note:	All wages are calculated and paid hourly. Biweekly and Annual wages may be approximate and are only for informational purposes.									

City of Greenfield Central Maintenance Wage Schedule

7/1/24 to 6/30/25

FY25

3% COLA add Step K

Grade	A	B	C	D	E	F	G	H	I	J	K
CM1	\$20.02	\$20.81	\$21.57	\$22.34	\$23.12	\$23.88	\$24.59	\$25.33	\$26.10	\$26.88	\$27.69
	\$1,601.60	\$1,664.80	\$1,725.60	\$1,787.20	\$1,849.60	\$1,910.40	\$1,967.20	\$2,026.40	\$2,088.00	\$2,150.40	\$2,215.20
	\$41,641.60	\$43,284.80	\$44,865.60	\$46,467.20	\$48,089.60	\$49,670.40	\$51,147.20	\$52,686.40	\$54,288.00	\$55,910.40	\$57,595.20
CM2	\$22.54	\$23.28	\$24.07	\$24.82	\$25.60	\$26.39	\$27.18	\$27.99	\$28.83	\$29.69	\$30.58
	\$1,803.20	\$1,862.40	\$1,925.60	\$1,985.60	\$2,048.00	\$2,111.20	\$2,174.40	\$2,239.20	\$2,306.40	\$2,375.20	\$2,446.40
	\$46,883.20	\$48,422.40	\$50,065.60	\$51,625.60	\$53,248.00	\$54,891.20	\$56,534.40	\$58,219.20	\$59,966.40	\$61,755.20	\$63,606.40
CM3	\$24.60	\$25.43	\$26.30	\$27.12	\$27.97	\$28.83	\$29.71	\$30.59	\$31.51	\$32.46	\$33.43
	\$1,968.00	\$2,034.40	\$2,104.00	\$2,169.60	\$2,237.60	\$2,306.40	\$2,376.80	\$2,447.20	\$2,520.80	\$2,596.80	\$2,674.40
	\$51,168.00	\$52,894.40	\$54,704.00	\$56,409.60	\$58,177.60	\$59,966.40	\$61,796.80	\$63,627.20	\$65,540.80	\$67,516.80	\$69,534.40
CM4	\$27.01	\$27.92	\$28.82	\$29.80	\$30.80	\$31.79	\$32.72	\$33.71	\$34.72	\$35.76	\$36.83
	\$2,160.80	\$2,233.60	\$2,305.60	\$2,384.00	\$2,464.00	\$2,543.20	\$2,617.60	\$2,696.80	\$2,777.60	\$2,860.80	\$2,946.40
CM4	\$56,180.80	\$58,073.60	\$59,945.60	\$61,984.00	\$64,064.00	\$66,123.20	\$68,057.60	\$70,116.80	\$72,217.60	\$74,380.80	\$76,606.40
Note: All wages are calculated and paid hourly. Biweekly and Annual wages may be approximate and are only for informational purposes.											

City of Greenfield Central Maintenance Wage Schedule

7/1/25 to 6/30/26

FY26

3% COLA

Grade	A	B	C	D	E	F	G	H	I	J	K
CM1	\$20.62	\$21.43	\$22.22	\$23.01	\$23.81	\$24.60	\$25.33	\$26.09	\$26.88	\$27.69	\$28.52
	\$1,649.60	\$1,714.40	\$1,777.60	\$1,840.80	\$1,904.80	\$1,968.00	\$2,026.40	\$2,087.20	\$2,150.40	\$2,215.20	\$2,281.60
	\$42,889.60	\$44,574.40	\$46,217.60	\$47,860.80	\$49,524.80	\$51,168.00	\$52,686.40	\$54,267.20	\$55,910.40	\$57,595.20	\$59,321.60
CM2	\$23.22	\$23.98	\$24.79	\$25.56	\$26.37	\$27.18	\$28.00	\$28.83	\$29.69	\$30.58	\$31.50
	\$1,857.60	\$1,918.40	\$1,983.20	\$2,044.80	\$2,109.60	\$2,174.40	\$2,240.00	\$2,306.40	\$2,375.20	\$2,446.40	\$2,520.00
	\$48,297.60	\$49,878.40	\$51,563.20	\$53,164.80	\$54,849.60	\$56,534.40	\$58,240.00	\$59,966.40	\$61,755.20	\$63,606.40	\$65,520.00
CM3	\$25.34	\$26.19	\$27.09	\$27.93	\$28.81	\$29.69	\$30.60	\$31.51	\$32.46	\$33.43	\$34.43
	\$2,027.20	\$2,095.20	\$2,167.20	\$2,234.40	\$2,304.80	\$2,375.20	\$2,448.00	\$2,520.80	\$2,596.80	\$2,674.40	\$2,754.40
	\$52,707.20	\$54,475.20	\$56,347.20	\$58,094.40	\$59,924.80	\$61,755.20	\$63,648.00	\$65,540.80	\$67,516.80	\$69,534.40	\$71,614.40
CM4	\$27.82	\$28.76	\$29.68	\$30.69	\$31.72	\$32.74	\$33.70	\$34.72	\$35.76	\$36.83	\$37.93
	\$2,225.60	\$2,300.80	\$2,374.40	\$2,455.20	\$2,537.60	\$2,619.20	\$2,696.00	\$2,777.60	\$2,860.80	\$2,946.40	\$3,034.40
	\$57,865.60	\$59,820.80	\$61,734.40	\$63,835.20	\$65,977.60	\$68,099.20	\$70,096.00	\$72,217.60	\$74,380.80	\$76,606.40	\$78,894.40
Note:	All wages are calculated and paid hourly. Biweekly and Annual wages may be approximate and are only for informational purposes.										

APPENDIX A

HEALTH INSURANCE:

The Union recognizes that health insurance costs are a significant and rising expenditure and liability to the City's annual budget. The Union will continue to cooperate with other unions and the City through the Insurance Advisory Committee.

Either party may serve notice on the other that they wish to reopen the contract on the subject of health insurance during the life the contract. By mutual agreement, the parties will meet and bargain in good faith within thirty (30) days of such notice.

LTD PROPOSAL:

It is understood the LTD program will be instituted when all non-public safety City unions (e.g., Clerical, DPW, SSEA) finally agree to the same program and language changes to their respective Sick Leave Articles so the program is standardized for all employees.

It is understood the current Article 13, Sick Leave remains in effect until the same LTD program and language changes to the respective Sick Leave Articles have been ratified by the respective union membership(s) and the program is implemented.

As it is unknown what changes may be made to the proposal, if any, during City negotiations with other unions, the parties agree to a re-opener on the proposal if changes are made and agreed to by the City and any other non-public safety union to a proposal that was presented to the Union during negotiations. With mutual intent to come to an agreement, the parties will meet and bargain in good faith within 30 days after such request to re-open.